

**STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON**

ANDREW J. PIGORS,
Plaintiff,

v.

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

Case No.
Hon.

**VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE
RELIEF, DAMAGES, AND VIOLATION OF CIVIL RIGHTS**

INTRODUCTION

This is a civil action for declaratory and injunctive relief, compensatory and punitive damages, and enforcement of constitutional and statutory protections. Defendants engaged in a coordinated scheme of unlawful conduct, including but not limited to rent manipulation, environmental neglect, fabrication of financial records, illegal eviction procedures, and the misuse of entity registrations in housing court.

These actions culminated in the forced displacement of Plaintiff Andrew J. Pigors from his lawfully owned home at Lot 17, 1977 Whitehall Road, Muskegon, Michigan, despite full rent payment and while critical health and safety violations persisted. The conduct described herein constitutes violations of:

- **MCL 600.2918 (wrongful eviction)**
- **MCL 554.139 (habitability failures)**
- **MCL 445.903 (consumer fraud)**

- **MCL 125.2301 et seq. (mobile home licensing)**
- **Michigan Constitution, Article I, §§ 2, 17 (equal protection and due process)**
- **42 U.S.C. § 1983 (civil rights deprivation under color of law)**

This Court's equitable powers are invoked to prevent irreparable harm and ongoing statutory violations. No other forum or remedy is adequate under **MCR 2.221**.

I. PARTIES

1. **Plaintiff Andrew J. Pigors** is a resident of Muskegon County and the lawful owner of a manufactured home formerly situated at Lot 17 in Shady Oaks Park.
 2. **Defendant Shady Oaks Park MHP LLC** was the licensed operator of the park until it ceased operations without legally recognized succession.
 3. **Defendant Homes of America LLC** is a Delaware-registered corporate landlord which assumed control of Shady Oaks operations, issued ledgers, and initiated unlawful eviction proceedings.
 4. **Defendant Alden Global Capital LLC** is a private equity firm that controls Homes of America's asset management policies, rent practices, and tenant displacement protocols.
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II. JURISDICTION AND VENUE

5. This Court has general equitable jurisdiction pursuant to **MCL 600.605** and the authority to issue injunctive relief under **MCR 3.310**.
 6. Venue is proper in Muskegon County under **MCL 600.1621**, as all relevant events and property are located therein.
 7. Federal claims under **42 U.S.C. § 1983** are properly before this Court under **MCL 600.101–8411**, with supplemental jurisdiction preserved under **28 U.S.C. § 1367**.
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III. FACTUAL ALLEGATIONS

8. Plaintiff lawfully leased a mobile home site from Defendants at a base rent of **\$395/month**.
 9. On or about **March 31, 2024**, Plaintiff was coerced into signing a lease at **Cricklewood MHP**, raising rent to **\$695/month**, under threat of eviction.
 10. No updated lease was provided when rent increased again to **\$720/month** in **April 2025**, in violation of notice and contract law.
 11. Defendants imposed unauthorized fees and inflated utility charges—particularly for trash and water/sewer—in violation of **MCL 125.2328(1)(b)**.
 12. Rent for all months through **December 2024** was fully paid via **MDHHS-CERA assistance**, acknowledged in open court on **April 16, 2025**.
 13. Defendants knowingly fabricated rental arrears, submitted **false ledgers** in court, and listed charges under the name “Shady Oaks Park MHP LLC,” which was no longer a registered operator.
 14. On **May 20, 2025**, water was shut off to Plaintiff’s home without notice while his minor child was present, constituting **constructive eviction**.
 15. From **February to May 2025**, raw sewage remained on Plaintiff’s lot. Despite **EGLE** involvement, no repairs occurred. (*See Exhibit B.*)
 16. On **June 9, 2025**, Defendants forcibly removed Plaintiff, seized his property, and disposed of his home—despite full rent payment and active legal filings—violating **MCL 600.2918** and the **Due Process Clause of the Michigan Constitution**.
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IV. CAUSES OF ACTION

COUNT I – WRONGFUL EVICTION (MCL 600.2918)

17. Defendants used unlawful means—including utility shutoff, entity misrepresentation, and false documentation—to evict Plaintiff outside judicial process.

COUNT II – BREACH OF IMPLIED WARRANTY OF HABITABILITY (MCL 554.139)

18. Defendants failed to maintain habitable conditions (e.g., sewage, potable water) while continuing to charge rent and fees.

COUNT III – FRAUD / MISREPRESENTATION

19. Defendants knowingly presented falsified rent balances and omitted exculpatory evidence to induce a judicial error.

COUNT IV – PROCEDURAL DUE PROCESS VIOLATION (Art I § 17)

20. Plaintiff was denied fair notice and a meaningful opportunity to be heard, in violation of both state and federal constitutional rights.

COUNT V – CIVIL CONSPIRACY (MCL 600.2925a)

21. Defendants acted in concert to obscure corporate identity, falsify billing records, and unlawfully dispossess Plaintiff.

COUNT VI – CONSUMER PROTECTION ACT VIOLATION (MCL 445.903)

22. Defendants engaged in unfair trade practices by coercing lease execution and omitting material facts regarding charges and operational authority.

COUNT VII – MOBILE HOME COMMISSION ACT VIOLATION (MCL 125.2301 et seq.)

23. Defendants operated the park without a valid license and failed to comply with mandatory safety and disclosure laws.

COUNT VIII – NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

24. Plaintiff and his minor child experienced extreme emotional distress due to raw sewage, abrupt loss of utilities, and forced eviction.

COUNT IX – CONVERSION / TRESPASS TO CHATTEL (MCL 750.362 as civil analog)

25. Defendants damaged, discarded, or wrongfully withheld Plaintiff's personal property during unlawful eviction, without inventory or due process.

COUNT X – VIOLATION OF 42 U.S.C. § 1983

26. Defendants' conduct—facilitated or tolerated by state court actors—deprived Plaintiff of federally protected rights without adequate legal recourse.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

- A. **Declare** Defendants' eviction unlawful and void;
- B. **Issue preliminary and permanent injunctions** barring further dispossession, retaliation, or collection;
- C. **Restore possession or award replacement value** of the home and lost property;
- D. **Award compensatory damages** exceeding **\$25,000** for economic loss and emotional distress;
- E. **Award punitive damages** against all Defendants for willful and malicious conduct;
- F. **Void any alleged arrears** based on falsified ledgers or unlicensed billing;
- G. **Award attorney fees and costs** as authorized by statute or equity;
- H. **Preserve federal claims** pursuant to **42 U.S.C. § 1983** and **28 U.S.C. § 1367**;
- I. **Order production and preservation of evidence** (including water shutoff records, rent ledgers, entity registrations, and communication logs) to prevent spoliation;

J. Permit amendment of this complaint under MCR 2.118(C) as additional facts become available;

K. Grant any further relief this Court deems just and proper.

VI. VERIFICATION UNDER MCR 2.114(B)

I, Andrew J. Pigors, verify under penalty of perjury that the foregoing allegations are true to the best of my knowledge, information, and belief. I acknowledge that sanctions may apply under **MCR 1.109(E)** and **MCR 2.114(D)** if this verification is knowingly false.

Dated: June 12, 2025
Respectfully submitted,

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Rd.
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

**STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
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ANDREW J. PIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
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ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

**AFFIDAVIT IN SUPPORT OF VERIFIED COMPLAINT
AND REQUEST FOR INJUNCTIVE RELIEF**

I, Andrew J. Pigors, being duly sworn, depose and state under penalty of perjury pursuant to MCR 2.114(B) and MCL 565.201, that the following statements are true to the best of my knowledge, information, and belief:

1. I am the Plaintiff in the above-captioned matter and a resident of Lot 17, 1977 Whitehall Road, Muskegon, Michigan.
2. I lawfully owned and occupied a manufactured home at the above location within Shady Oaks Park MHP, which was at various times managed or controlled by Defendants Shady Oaks Park MHP LLC, Homes of America LLC, and Alden Global Capital LLC.
3. From 2023 through 2025, I was subjected to escalating rent increases, coerced lease terms, and improper billing practices, including:
 - Rent increases from \$395 to \$695/month under threat of eviction;
 - An unconsented increase to \$720/month without a valid lease;
 - Stacked charges including \$120/month water/sewer, \$18+ trash fees, and bogus "admin fees" without contractual or statutory authority.
4. On April 16, 2025, during proceedings in 60th District Court, the Hon. Maria Ladas Hoopes acknowledged on the record that my MDHHS-CERA rental assistance covered all rent through December 2024.
5. Despite this, Defendants:
 - Fabricated rent ledgers reflecting non-existent arrears;

- Listed false debts under a defunct corporate name (“Shady Oaks Park MHP LLC”), no longer registered or licensed to operate in Michigan;
 - Initiated eviction proceedings while being legally unlicensed and misrepresenting their standing.
6. On May 20, 2025, while my minor child was home, Defendants unlawfully shut off water to my residence, constituting constructive eviction and creating immediate danger to the child’s health and safety.
 7. Between February and May 2025, untreated sewage remained pooled on my lot. EGLE reports confirm a sewage violation existed during this period, yet no remediation occurred, in breach of Defendants’ duty under MCL 554.139.
 8. On June 9, 2025, I was forcibly removed from my home despite full rent coverage and an active motion to stay eviction. Defendants seized and discarded my personal property without a court-authorized writ, inventory, or opportunity to contest—violating MCL 600.2918 and the Due Process Clause of the Michigan Constitution.
 9. Defendants’ actions were not isolated but part of a systemic pattern of abuse tied to corporate practices by Homes of America LLC and Alden Global Capital LLC in other communities, as detailed in national reports (e.g., Private Equity Stakeholder Project).
 10. I submitted a Verified Complaint containing ten counts including wrongful eviction, fraud, civil rights violations, habitability breaches, and consumer fraud. These claims are supported by sworn documents and Exhibits A–G.
 11. I request the Court grant immediate injunctive relief to prevent further harm, retaliatory acts, or suppression of evidence, and to preserve my federal and state rights under Michigan and U.S. law.
 12. I further affirm that the allegations in the Verified Complaint are made in good faith and not for any improper purpose.

VERIFICATION AND SIGNATURE

I declare under the laws of the State of Michigan that the foregoing is true and correct. This affidavit is submitted pursuant to MCR 2.114(B), MCR 3.310(B), and in further support of the Verified Complaint filed contemporaneously herewith.

Executed on this 12th day of June, 2025.
Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors, Plaintiff in Pro Per
Lot 17, 1977 Whitehall Rd.
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

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Plaintiff,

**SHADY OAKS PARK MHP LLC,
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v.

Case No.: _____
Hon.: _____

PROPOSED ORDER

**FOLLOWING VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE
RELIEF, DAMAGES, AND CIVIL RIGHTS VIOLATIONS**

At a session of said Court, held in the County of Muskegon, State of Michigan, on the _____
day of _____, 2025:

PRESENT: Hon. _____, Circuit Court Judge

FINDINGS

Upon review of Plaintiff's Verified Complaint and supporting documentation, the Court finds as follows:

1. Plaintiff has asserted colorable claims under Michigan law and the U.S. Constitution, including but not limited to:
 - Constructive eviction (MCL 600.2918),
 - Breach of habitability (MCL 554.139),
 - Consumer fraud (MCL 445.903),
 - Violation of due process rights under Mich. Const. Art. I § 17 and U.S. Const.

Amend. XIV,

- Federal civil rights violations pursuant to 42 U.S.C. § 1983.
 - 2. Plaintiff has alleged facts sufficient to support injunctive and declaratory relief under MCR 3.310 and MCL 600.5021.
 - 3. The claims and evidence, including verified exhibits, support a finding that irreparable harm has occurred or will occur without immediate Court oversight and relief.
 - 4. This interim relief is granted pursuant to the Court's equitable authority under MCR 3.310(A) and MCL 600.6104, pending full adjudication.
-

IT IS HEREBY ORDERED THAT:

A. This matter shall proceed to full hearing on Plaintiff's claims for:

1. Declaratory judgment concerning lease enforceability, entity licensing, utility tampering, and Plaintiff's housing rights;
2. Preliminary and permanent injunctive relief restraining Defendants from unlawful eviction, service disconnection, or billing fraud;
3. Compensatory and punitive damages arising from the violations described in the Verified Complaint;
4. Constitutional enforcement and civil rights adjudication, including the preservation of all federal claims.

B. Defendants are hereby enjoined from taking any further adverse action against Plaintiff related to the facts alleged in the Verified Complaint until such time as a full evidentiary hearing is held and a final ruling issued.

C. A scheduling conference or motion hearing shall be set within 21 days to determine the next appropriate procedural steps under MCR 2.401.

D. Plaintiff shall serve this Order along with the Complaint and supporting documents on all named Defendants in accordance with MCR 2.107(C).

E. Plaintiff's access to utility services and occupancy of Lot 17 shall be preserved and maintained without disruption pending further order of the Court.

F. Plaintiff's rights under Canon 3(C)(1), the Michigan Constitution (Art. I § 17), and the U.S. Constitution (Amend. XIV) are preserved for final adjudication.

G. Any violation of this Order may result in civil contempt sanctions. Defendants may move to dissolve or modify this Order only by written motion and hearing pursuant to MCR 3.310(B)(3).

SO ORDERED.

Date: _____

Hon.
Circuit Court Judge – 14th Judicial Circuit
Muskegon County, Michigan

Prepared by:
Andrew J. Pigors
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

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EXHIBIT INDEX – IN SUPPORT OF VERIFIED COMPLAINT AND MOTIONS

(Pursuant to MCR 2.302(G), MRE 1006)

Exhibit	Title/Description	Legal Relevance	Status
A	April–May Rent Ledgers	Demonstrates inflated, inconsistent billing; foundation for fraud and retaliation claims.	✓ Prepared
B	Lease signed at Cricklewood (March 26, 2024)	Evidence of coercion, duress, and improper venue; rebuttal to alleged lease agreement.	✓ Prepared
C	Sewage Leak Documentation (Mar–May 2025)	Material evidence of habitability violations and MCL 125.471 noncompliance.	✓ Prepared
D	Rejected \$1,300.26 Rent Check	Rebuttal to “nonpayment” claim; shows improper refusal of payment.	✓ Prepared
E	MDHHS Letter of Rental Assistance	Establishes rent was paid by the State through Dec. 2024; supports estoppel.	✓ Prepared
F	Business License Revocation (Shady Oaks)	Proves unlawful operation; violation of MCL 125.232, MCL 600.5716.	✓ Prepared
G	EGLE Complaint Filings + Enforcement Records	Validates environmental hazards, supports injunctive relief.	✓ Prepared
H	Timeline of Key Events (One-Page Chronology)	MRE 1006 demonstrative tool aiding judicial understanding of sequence.	✓ Prepared

Filed by:

Andrew J. Pigors, In Pro Per

Dated: _____

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT A

Description: April/May Rent Ledgers showing inflated fees

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit A is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT B

Description: Coerced lease signed at Cricklewood on March 26, 2024

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit B is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT C

Description: Sewage leak photos and documentation (March–May 2025)

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit C is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT D

Description: Rejected \$1,300.26 rent check

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit D is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT E

Description: MDHHS proof of rent coverage through Dec. 2024

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit E is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

EXHIBIT F

Description: Shady Oaks LLC license revocation and registration lapse

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit F is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN

IN THE 14TH JUDICIAL CIRCUIT COURT

FOR THE COUNTY OF MUSKEGON

EXHIBIT G

Description: EGLE Complaint filings and regulatory references

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit G is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per

STATE OF MICHIGAN

IN THE 14TH JUDICIAL CIRCUIT COURT

FOR THE COUNTY OF MUSKEGON

EXHIBIT H

Description: Chronological Timeline of Events (March 2024 – May 2025)

Verification:

I, Andrew J. Pigors, declare under penalty of perjury that Exhibit H is a true and correct copy of the document described above, to the best of my knowledge, information, and belief. This exhibit is submitted in support of my Verified Complaint and Affidavit for Ex Parte Temporary Restraining Order and Preliminary Injunction in accordance with MCR 2.114(B).

Executed on this 12 day of June, 2025.

Signature: _____

Andrew J. Pigors

Plaintiff, In Pro Per